



attitude is a little thing
that makes a big difference.

Reasonable adjustments: a practical exploration

Karen Jackson, didlaw

reasonable adjustments

the *nature* of the duty

- a broad and wide-ranging duty but not a blanket duty, Archibald v Fife
- the RA duty is not a *general* duty to support disabled workers, RBS v Ashton

RAs & the ECJ

Ring v Dansk

- removing the *barriers* which hinder the **full and effective participation** of disabled employees in the workplace

reasonable adjustments

assessing the duty – four steps to RAs

1. to identify one of the three requirements
2. to identify the substantial disadvantage
3. to see if it affects non-disabled people. If it does not
4. make the adjustment but only
 - (a) if it is reasonable and
 - (b) if it has some prospect of success

reasonable adjustments

employers have a *duty* to consider the effect on a disabled person of the three requirements

a provision, criterion or practice (PCP)
the 1st requirement, s.20(3)

a physical feature
the 2nd requirement, s.20(4)

the provision of an auxiliary aid
the 3rd requirement, s.20(5)

reasonable adjustments

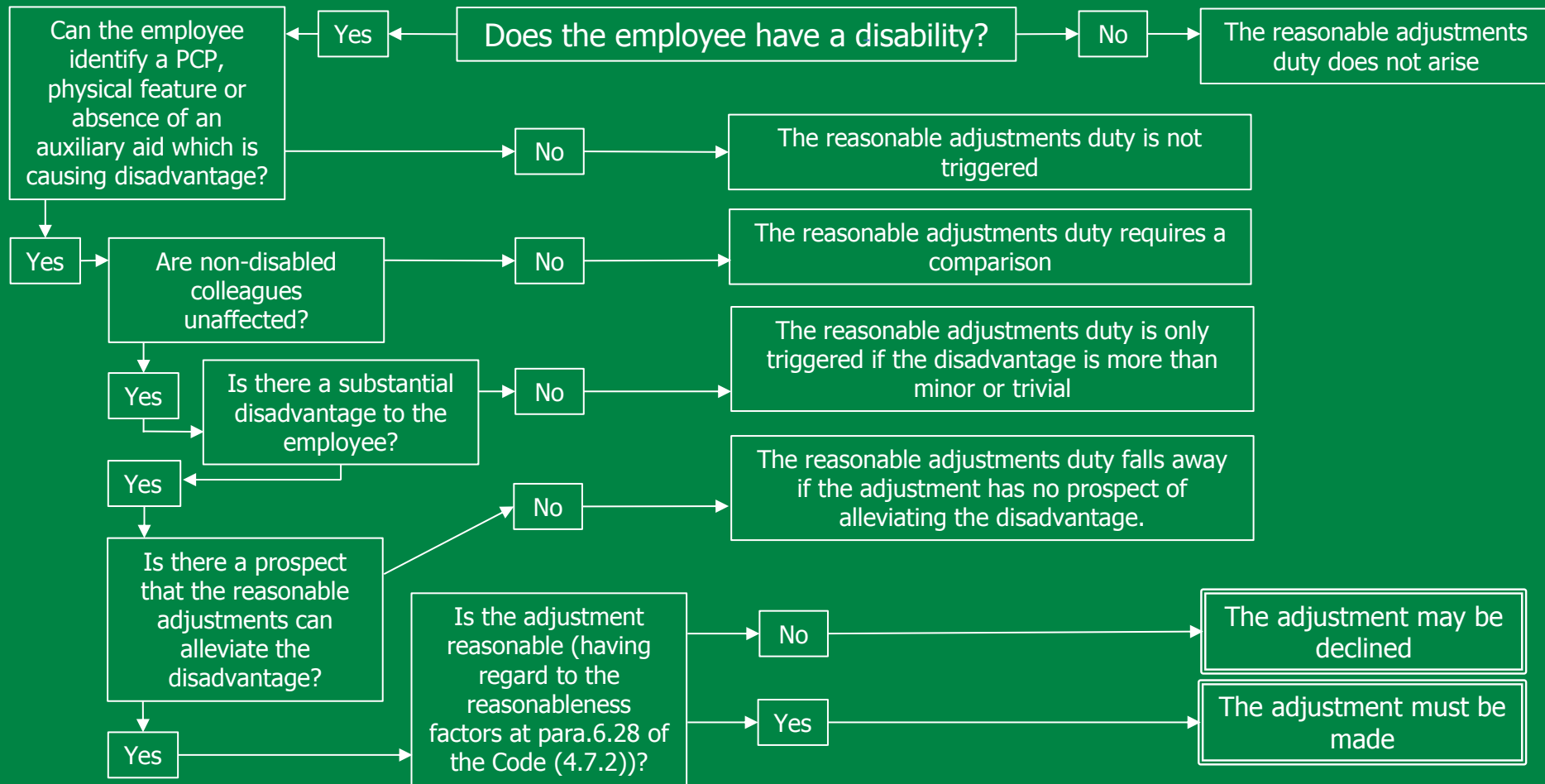
is there a *substantial* disadvantage?

- substantial means “more than minor or trivial”
- can the RA alleviate the disadvantage – does it address the problem?

reasonable adjustments

when is a reasonable adjustment *reasonable?*

- case-specific
- depends on size and resources of employer
- when it is not unreasonable
- Statutory Code 6.2 – cost, disruption, etc



reasonable adjustments

dismissal

- s.20 applies to *all* stages of employment including recruitment
- RA duty *must* be explored and exhausted before capability dismissal

reasonable adjustments

Wade v Sheffield Hallam University

- restructure
- not reasonable to *place* her in the role
- found wanting under essential criteria
- clawing back from Archibald

reasonable adjustments

Redcar v Cleveland PCT

- failure in RA duty
- discriminatory dismissal
- prohibition on applying for role above band was a PCP which caused substantial disadvantage

reasonable adjustments

Jennings v Barts & The London NHS

- not reasonable to disapply absence policy
- ample and fair opportunity to engage

reasonable adjustments

Crofts Vets v Butcher

- refusal to pay for psychiatric treatment was a failure in the RA duty
- specific form of support to enable a return to work

reasonable adjustments

JobCentre Plus v Jamil

- RA duty extends over a period
- remains a live duty
- *on each day that it remains a duty*

frustration

Warner v Armfield Retail & Leisure

- common law doctrine: apply with caution
- once RA duty explored and extinguished frustration *may* end the contract
- always take advice before relying on this

obesity

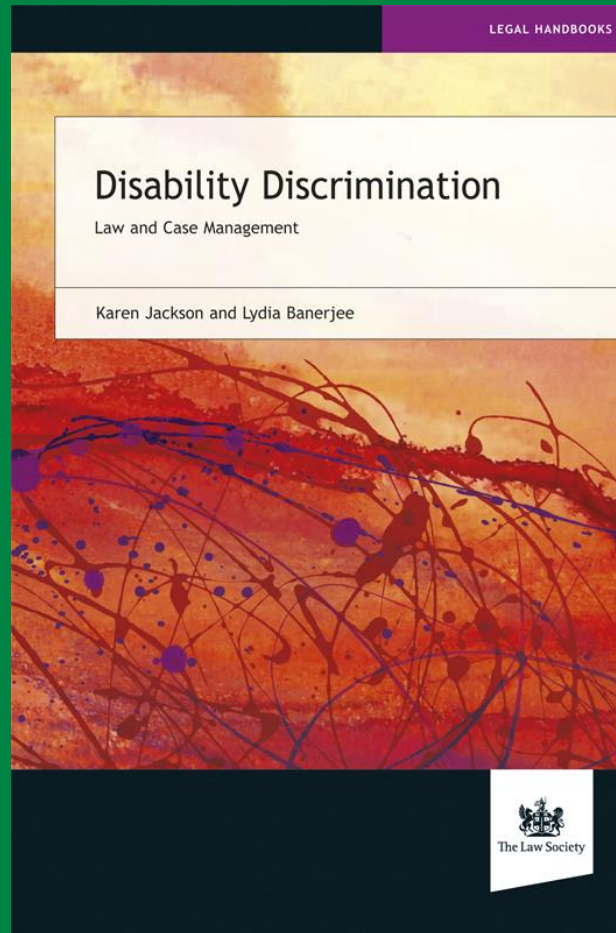
Walker v Sita

- *functional overlay*
- impact not medical recognition

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